

Vinod Porwal v. State of Uttar Pradesh and 2 Others

High Court of Judicature at Allahabad · Division Bench · 28 March 2023 · WRIT - C No. - 10083 of 2023 · **Writ disposed directing consideration of a fresh Clause 4.4 application**

HEADNOTE

Writ seeking a fresh electricity connection on an online indemnity bond was disposed of by consent, without any opinion on the merits. If the petitioner moves an appropriate application under Clause 4.4 of the Uttar Pradesh Electricity Supply Code, 2005 within two weeks, the Executive Engineer shall consider it and pass an order in accordance with law, in light of the coordinate Bench judgment in Seema Mansoor, within a further three weeks.

FACTUAL SUMMARY

Vinod Porwal sought a mandamus for a fresh electricity connection upon an indemnity bond filed online under login ID PCL4821481. He relied on the coordinate Bench order of 26 May 2014 in Seema Mansoor v. U.P. Power Corporation. Counsel for the licensee said an FIR for theft had been lodged, that such theft is compoundable under Section 152 of the Electricity Act, 2003, and that Section 126 concerns assessment, while agreeing that a fresh application under Clause 4.4 of the Supply Code, 2005 would be considered in accordance with law.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

fresh connection application

HOLDING

The writ was disposed of by consent, and without any opinion on the merits, with a direction that if the petitioner moves an appropriate application under Clause 4.4 of the Uttar Pradesh Electricity Supply Code, 2005 within two weeks, the Executive Engineer (respondent no. 3) shall consider it and pass an appropriate order in accordance with law, in light of the coordinate Bench judgment dated 26.05.2014 in Seema Mansoor, within a further three weeks. ¶ 1-2

PRINCIPLE TAGS

direction-to-consider-connection-on-furnishing-4.4-or-annexure-4.2-documents By consent, and without deciding the merits, the Court directed the Executive Engineer to consider a Clause 4.4 application moved within two weeks and to pass an order in accordance with law within three further weeks, in light of Seema Mansoor. Lead authorities: *Seema Mansoor v. U.P. Power Corporation and 3 Others*. ¶ 1-2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER IS ENTITLED TO A FRESH CONNECTION ON THE INDEMNITY BOND ALREADY FILED UNDER LOGIN ID PCL4821481

The Court declined to express any opinion on the merits and required a fresh application under Clause 4.4. ¶ 1-2

NOT DECIDED — EFFECT OF THE THEFT FIR, COMPOUNDING UNDER SECTION 152, AND ASSESSMENT UNDER SECTION 126 OF THE ELECTRICITY ACT, 2003

Mentioned only in the licensee's submission; no finding was recorded. ¶ 1-2

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Seema Mansoor v. U.P. Power Corporation and 3 Others</i>			petitioner and the Court	Referred

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
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Writ C No. 28295 of 2014, order dated 26.05.2014				
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A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.